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Case Number: 25TRCV03038 Hearing Date: July 10, 2026 Dept: 5

Superior Court of California

County of Los Angeles – Southwest District

Department

5

JIMMY BROWN

, et al.;

Plaintiffs,

vs.

DENNIS P. BLOCK

, et al.;

Defendants

Case

No.:

25TRCV03038

Hearing

Date:

July
10, 2026

Time:

1:30 p.m.

[Tentative]

Order RE:

(1) PLAINTIFFS JIMMY BROWN AND ANGEL BROWN'S
MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION (SET ONE)

(2) PLAINTIFFS JIMMY BROWN AND ANGEL BROWN'S
REQUEST FOR MONETARY SANCTIONS

MOVING

PARTY: Plaintiffs, Jimmy
Brown and Angel Brown

RESPONDING PARTY: Defendants, Dennis P. Block and Dennis P.
Block & Associates, APC

(1) Plaintiffs Jimmy Brown and Angel Brown's
Motion to Compel Further Responses to Requests for Production (Set One) is GRANTED
IN PART pursuant to Code of Civil Procedure section 2031.310, subdivision (a).

(2) Plaintiffs Jimmy Brown and Angel Brown's Request
for Monetary Sanctions is DENIED pursuant to Code of Civil Procedure sections
2023.010, 2023.030, and 2031.310.

The Court considers the moving paper filed on March 10, 2026, the
opposition brief filed on April 27, 2026, and the reply brief filed on June 23,
2026.

BACKGROUND

Factual Background

On September 8, 2025, self-represented plaintiffs Jimmy Brown and Angel Brown (collectively, "Plaintiffs") filed their Complaint against defendants Dennis P. Block, Dennis P. Block & Associates, and DOES 1 through 20. The Complaint alleges the following causes of action: (1) Defamation (Civ. Code, §§ 45-46); (2) Abuse of Process; (3) Intentional Infliction of Emotional Distress; (4) Fraud & Misrepresentation; (5) Illegal Lockout/Utility Shutoff – Violation of Civ. Code, § 789.3; and (6) Litigation Misconduct – CCP, § 128.7 and Rule 11.

On December 17, 2025, Plaintiffs served Requests for Production, Set One, on defendants Dennis P. Block and Dennis P. Block & Associates, APC (collectively, "Defendants"). (Declaration of Angel Brown ("Brown Decl."), ¶ 2; Declaration of H. G. Long ("Long Decl."), ¶ 3, Exh. 1.) On January 21, 2026, Defendants provided their responses, which were predominantly composed of objections. (Brown Decl., ¶ 3; Long Decl., ¶ 3, Exh. 2.)

Subsequently, on January 26, 2026, Plaintiffs sent a meet-and-confer letter to Defendants, claiming that their responses were late and that all objections had therefore been waived. (Long Decl., ¶ 4, Exh. 3.) Later that same day, Defendants' counsel asserted that the responses were not late according to Code of Civil Procedure section 1010.6, subdivision (a)(3)(B). (Long Decl., ¶ 6, Exh. 4.) Within an hour, Plaintiffs responded, asserting that "the issue is not timeliness but non-compliance with the Civil Discovery Act[.]" and indicated that the responses included "repetitive boilerplate responses." (Brown Decl., ¶ 4, Exh. A.) On February 3, 2026, Plaintiffs followed up on the previous email. (Brown Decl., ¶ 4, Exh. B.)

On February 5, 2026, Plaintiffs followed up by formally requesting a telephonic or Zoom meet-and-confer conference to address the alleged deficiencies in the responses. (Brown Decl., ¶ 5, Exh. C.) Plaintiffs also informed Defendants that if they did not respond to the email or were unwilling to remedy the alleged deficiencies, Plaintiffs would proceed to file a motion to compel further responses. (Brown Decl., ¶ 5, Exh. C.) On the same day, Plaintiffs sent an additional email to Defendants' counsel indicating their availability for a video conference. (Brown Decl., Exh. C.)

In response, Defendants' counsel asserted that Plaintiffs' meet-and-confer letters failed to constitute a reasonable, good-faith effort to resolve the matter informally. (Brown Decl., Exh. D.) Defendants' counsel stated, "Your meet and confer letters make no effort to explain why Defendants' objections were improper or without merit as to each asserted objection. You are alleging that Defendants' responses (objections) were deficient, but you have not described the deficiencies in relation to each response. Instead, your letter simply states a general, conclusory allegation that Defendants' objections are 'repetitive,' 'boilerplate' and 'fail to comply with the California Discovery Act...' " (Brown Decl., Exh. D.) The following day, Plaintiffs replied, asserting that their meet-and-confer efforts were sufficient and that Defendants were unwilling to supplement their discovery responses. (Brown Decl., Exh. D.)

On February 14, 2026, Plaintiffs sent a meet-and-confer letter that allegedly "identif[ied] the specific deficiencies in Defendant[s'] responses and request[ed] further verified, code-compliant responses within five (5) calendar days." (Brown Decl., ¶ 7, Exh. E.) On February 19, 2026, Defendants' counsel requested an extension to respond to this letter, proposing a deadline of February 26, 2026. (Brown Decl., ¶ 8, Exh. F.) The following day, Plaintiffs consented to this extension; however, they clarified that the extension "did not extend Plaintiffs' statutory deadline to file a motion to compel." (Brown Decl., ¶ 9, Exh. G.)

On February 26, 2026, Plaintiffs contended that Defendants' amended responses were overdue, as Plaintiffs had not extended the deadline for submitting further responses requested in their meet-and-confer letter. (Brown Decl., ¶ 10, Exh. H.) Plaintiffs clarified that the extension was applicable solely to Defendants' response to the meet-and-confer letter itself. (Brown Decl., ¶ 10, Exh. H.)

On the same date, Defendants served amended discovery responses to Requests for Production, Set One, and reiterated their position that Plaintiffs' meet-and-confer efforts were inadequate. (Brown Decl., ¶ 10, Exh. I; Long Decl., Exh. 5.)

On June 17, 2026, Plaintiffs

sent an email confirming that the outstanding issues pertain to Requests for

Production Nos. 3, 4, 5, 7, 8, 9, and 10 pertaining to both defendants. (Reply Brown Decl., Exh. D.) Additionally, Plaintiffs requested a response

by June 19, 2026, to determine whether these issues could be resolved without

further motion practice. (Reply Brown

Decl., Exh. D.)

On June 19, 2026, Defendants' counsel

clarified that they had no documents to produce in response to Requests for

Production Nos. 4, 5, and 10, stating: "Defendant[s] has nothing to add and

nothing on which to supplement or amend."

(Reply Brown Decl., Exh. D.) Regarding

Requests for Production Nos. 3, 7, 8, and 9, Defendant maintained their

objections based on attorney-client privilege, overbreadth, and a lack of

proper distinction concerning the identity of the party to whom the requests

are directed. (Reply Brown Decl., Exh.

D.)

LEGAL STANDARD

A motion to compel further responses to a demand for inspection or

production of documents may be brought based on: (1) incomplete statements of

compliance; (2) inadequate, evasive, or incomplete claims of inability to

comply; or (3) unmeritorious or overly generalized objections. (Code Civ. Proc., § 2031.310, subd. (a).) Moreover,

"[t]he motion shall be accompanied by a meet and confer declaration under

Section 2016.040." (Code Civ. Proc.,

§ 2031.310, subd. (b)(2).)

A motion to compel further production must set forth specific facts

showing good cause justifying the discovery sought by the inspection demand. (Code Civ. Proc., § 2031.310, subd. (b)(1).)

"To establish good cause, a discovery

proponent must identify a disputed fact that is of consequence in the action

and explain how the discovery sought will tend in reason to prove or disprove

that fact or lead to other evidence that will tend to prove or disprove the

fact." (Digital Music News LLC v

Superior Court (2014) 226 Cal.App.4th 216, 224 ("Digital Music News LLC").) If the moving party has shown good cause for

the requests for production, the burden is on the objecting party to justify

the objections. (Kirkland v. Superior

Court (2002) 95 Cal. App.4th 92, 98.)

"[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.310, subd. (h).)

Under Code of Civil Procedure

section 2023.030, subdivision (a), "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2023.030, subd. (a).) "Misuses of the discovery process include ... (d) Failing to respond or to submit to an authorized method of discovery." (Code Civ. Proc., § 2023.010, subd. (d).) "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." (Cal. Rules of Court, rule 3.1348(a).)

MEET AND CONFER REQUIREMENT

Plaintiffs must meet and confer with Dennis P. Block before bringing this motion. (Code Civ. Proc., § 2030.300, subd. (b)(1).) Code of Civil Procedure section 2016.040 states that a meet and confer declaration "in support of a motion [to compel] shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc., § 2016.040.) "The parties must present to each other the merits of their respective positions with the same candor, specificity and support during informal negotiations as during the briefing of discovery

motions. Only after all the cards have been laid on the table, and a party has meaningfully assessed the relative strengths and weaknesses of its position in light of all available information, can there be a 'sincere' effort to resolve the matter.'" (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1293-1294, quoting Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1435.)

On December 17, 2025, Plaintiffs served Requests for Production, Set One, on Defendants. (Brown Decl., ¶ 2; Long Decl., ¶ 3, Exh. 1.) On January 21, 2026, Defendants provided their responses, which were predominantly composed of objections. (Brown Decl., ¶ 3; Long Decl., ¶ 3, Exh. 2.)

Subsequently, on January 26, 2026, Plaintiffs sent a meet-and-confer letter to Defendants, claiming that their responses were late and that all objections had therefore been waived. (Long Decl., ¶ 4, Exh. 3.) Later that same day, Defendants' counsel asserted that the responses were not late according to Code of Civil Procedure section 1010.6, subdivision (a)(3)(B). (Long Decl., ¶ 6, Exh. 4.) Within an hour, Plaintiffs responded, asserting that "the issue is not timeliness but non-compliance with the Civil Discovery Act[.]" and indicated that the responses included "repetitive boilerplate responses." (Brown Decl., ¶ 4, Exh. A.) On February 3, 2026, Plaintiffs followed up on the previous email. (Brown Decl., ¶ 4, Exh. B.)

On February 5, 2026, Plaintiffs followed up by formally requesting a telephonic or Zoom meet-and-confer conference to address the alleged deficiencies in the responses. (Brown Decl., ¶ 5, Exh. C.) Plaintiffs also informed Defendants that if they did not respond to the email or were unwilling to remedy the alleged deficiencies, Plaintiffs would proceed to file a motion to compel further responses. (Brown Decl., ¶ 5, Exh. C.) On the same day, Plaintiffs sent an additional email to Defendants' counsel indicating their availability for a video conference. (Brown Decl., Exh. C.)

In response, Defendants' counsel asserted that Plaintiffs' meet-and-confer letters failed to constitute a reasonable, good-faith effort to resolve the matter informally. (Brown Decl., Exh. D.) Defendants' counsel stated, "Your meet and confer letters make no effort to explain why Defendants' objections were improper or without merit as to each asserted objection. You are alleging that Defendants' responses

(objections) were deficient, but you have not described the deficiencies in relation to each response. Instead, your letter simply states a general, conclusory allegation that Defendants' objections are 'repetitive,' 'boilerplate' and 'fail to comply with the California Discovery Act...' " (Brown Decl., Exh. D.) The following day, Plaintiffs replied, asserting that their meet-and-confer efforts were sufficient and that Defendants were unwilling to supplement their discovery responses. (Brown Decl., Exh. D.)

On February 14, 2026, Plaintiffs sent a meet-and-confer letter that allegedly "identif[ied] the specific deficiencies in Defendant[s'] responses and request[ed] further verified, code-compliant responses within five (5) calendar days." (Brown Decl., ¶ 7, Exh. E.) On February 19, 2026, Defendants' counsel requested an extension to respond to this letter, proposing a deadline of February 26, 2026. (Brown Decl., ¶ 8, Exh. F.) The following day, Plaintiffs consented to this extension; however, they clarified that the extension "did not extend Plaintiffs' statutory deadline to file a motion to compel." (Brown Decl., ¶ 9, Exh. G.)

On February 26, 2026, Plaintiffs contended that Defendants' amended responses were overdue, as Plaintiffs had not extended the deadline for submitting further responses requested in their meet-and-confer letter. (Brown Decl., ¶ 10, Exh. H.) Plaintiffs clarified that the extension was applicable solely to Defendants' response to the meet-and-confer letter itself. (Brown Decl., ¶ 10, Exh. H.)

On the same date, Defendants served amended discovery responses to Requests for Production, Set One, and reiterated their position that Plaintiffs' meet-and-confer efforts were inadequate. (Brown Decl., ¶ 10, Exh. I; Long Decl., Exh. 5.)

In light of the numerous emails exchanged between the parties, the Court determines that Plaintiffs undertook sufficient efforts to meet and confer with Dennis P. Block before filing this motion.

DISCUSSION

Plaintiffs move to compel further responses and documents from defendant Dennis P. Block regarding their Requests for Production (Set One). (Motion, pp. 1:25-2:4.) However, the Court notes that Plaintiffs' separate statement ends with Requests for Production No. 10. This limitation affects the Court's ability to assess whether additional responses and documents are warranted for Requests for Production No. 11 and beyond. (Motion, pp. 11-43.) Moreover, on June 17, 2026, Plaintiffs sent an email confirming that the outstanding issues pertain to Requests for Production Nos. 3, 4, 5, 7, 8, 9, and 10. (Reply Brown Decl., Exh. D.) Consequently, the Court will limit its evaluation to these discovery requests.

The Court has examined the papers and the separate statement concerning Requests for Production Nos. 3, 4, 5, 7, 8, 9, and 10. The Court has provided an analysis for each request below. Upon careful review, the Court finds that Dennis P. Block is required to produce certain documents as requested.

Request for Production No. 3

Plaintiffs request: "Produce all documents relied upon to identify Plaintiffs' address as 12816 Van Ness Avenue in any pleading, notice, or mailing." (Motion, p. 19:12-13.)

In response, Dennis P. Block stated: "Objection: Violation of CCP § 2031.030(b). Per CCP § 2031.030(b), in relevant part, in the first paragraph immediately below the title of the case, there shall appear the identity of the responding party. In this case, Propounding Party lists the names of two parties as 'Responding Party,' when the relevant code section uses the singular rather than plural. A propounding party must propound discovery to individual parties individually and separately. ¶ Objection: Request is overbroad as to scope. ¶ Objection: Interrogatory calls for information protected by attorney-client privilege." (Motion, pp. 19:19-20:2.)

Plaintiffs maintain that these documents are pertinent to their claims of defamation, fraud, misrepresentation, abuse of process, illegal lockout, and

litigation misconduct, stating: “Defendant repeatedly used an incorrect address in pleadings and mailings despite evidence that Defendant knew or should have known Plaintiffs’ correct address.

Documents identifying the source of the incorrect address go directly to knowledge, intent, recklessness, and misuse of legal process.” (Motion, p. 21:10-14.)

The Court finds that Plaintiffs have demonstrated good cause, as the requested documents would aid in determining whether Dennis P. Block knowingly or recklessly employed an incorrect address when communicating with or serving Plaintiffs.

Dennis P. Block contends that “Plaintiff[s]’ motion should be denied because Defendants timely served responses and did not waive their objections.” (Motion, p. 3:8-9.) However, the Court finds that Dennis P. Block has indeed waived their objections.

A party must respond to requests for production within thirty (30) days after service. (Code Civ. Proc., § 2031.260, subd. (a).) “If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, the following rules shall apply: The party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010).” (Code Civ. Proc., § 2031.300, subd. (a).)

In this case, Plaintiffs issued the discovery on December 17, 2025, via email, with responses due on January 20, 2026, due to January 18, 2026, falling on a Sunday and January 19, 2026, being a holiday. (See Code Civ. Proc., § 1010.6, subd. (a)(3)(B).) Dennis P. Block acknowledges that they served their responses on January 21, 2026. (Opp., p. 3:16-17.) Consequently, Dennis P. Block has waived their objections.

Thus, the Court GRANTS Plaintiffs’ request to compel further responses to Request for Production No. 3.

Request for Production No. 4

Plaintiffs request: “Produce all documents showing when and how YOU learned that Plaintiffs’ correct address was 12812 Van Ness Avenue.” (Motion, p. 22:2-3.)

In response, Dennis P. Block stated: "Objection: Violation of CCP § 2031.030(b). Per CCP § 2031.030(b), in relevant part, in the first paragraph immediately below the title of the case, there shall appear the identity of the responding party. In this case, Propounding Party lists the names of two parties as 'Responding Party,' when the relevant code section uses the singular rather than plural. A propounding party must propound discovery to individual parties individually and separately. ¶ Objection: Request is overbroad as to scope. ¶ Objection: Interrogatory calls for information protected by attorney-client privilege. ¶ Objection: Request is vague, ambiguous, and uncertain as to 'correct address.' "

(Motion, p. 22:9-22.)

On February 26, 2026, Dennis P. Block provided a further response; however, Plaintiffs do not include the exact response in their separate statement. (Motion, pp. 22:24-23:7.)

Regardless, Plaintiffs fail to demonstrate good cause as to why these requested documents "will tend in reason to prove or disprove that [disputed] fact or lead to other evidence that will tend to prove or disprove the fact." (Digital Music News LLC, supra, 226 Cal.App.4th at p. 224.) Plaintiffs provide no argument to satisfy their burden.

Thus, the Court DENIES Plaintiffs' request to compel further responses to Request for Production No. 4.

Request for Production No. 5

Plaintiffs request: "Produce all documents reflecting any decision to continue mailing legal documents to 12816 Van Ness Avenue after June 3, 2024." (Motion, p. 25:14-16.)

In their initial response, Dennis P. Block allegedly did not provide an answer. (Motion, p. 25:19-22.) However, in their further response, Dennis P. Block stated: "After a diligent search and reasonable inquiry in an effort to comply with this request Responding Party is unable to respond because the requested documents have never existed."

(Motion, p. 26:1-3.)

Plaintiffs maintain that these documents are pertinent to their claims

of defamation, fraud, misrepresentation, abuse of process, illegal lockout, and litigation misconduct, stating: "Whether Defendant made or participated in a decision to continue mailing legal documents to 12816 Van Ness Avenue after June 3, 2024 goes directly to Defendant's knowledge, intent, recklessness, and credibility. June 3, 2024 is a critical date. Defendant appeared in court and was on notice of Plaintiffs' correct address at 12812 Van Ness Avenue. Any continued use of 12816 Van Ness Avenue after that date supports Plaintiffs' claims that Defendant knowingly used an incorrect address in pleadings and mailings." (Motion, p. 27:8-15.)

The Court finds that Plaintiffs have demonstrated good cause, as the requested documents would aid in determining whether Dennis P. Block knowingly used an incorrect address when communicating with or serving Plaintiffs. However, the Court cannot compel Dennis P. Block to produce documents that do not exist.

"A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item." (Code Civ. Proc., § 2031.230.)

Dennis P. Block's further response satisfies the requirements under Code of Civil Procedure section 2031.230 by asserting that (1) a diligent search and reasonable inquiry have been undertaken and (2) the particular item or category has never existed. Although Plaintiffs assert that "the response is evasive because it attempts to avoid production by asserting that 'the requested documents have never existed,' while providing no facts describing the search performed, the sources reviewed, or the basis for that conclusion[.]" Dennis P. Block is under no obligation to provide such information. Plaintiffs have not cited any statute or case law that necessitates otherwise.

Thus, the Court DENIES Plaintiffs' request to compel further responses

to Request for Production No. 5.

Request for Production No. 7

Plaintiffs request: "Produce all documents reflecting the basis for labeling Plaintiffs as 'squatters,' 'trespassers,' or unlawful occupants." (Motion, p. 31:17-18.)

In response, Dennis P. Block stated: "Objection: Violation of CCP § 2031.030(b). Per CCP § 2031.030(b), in relevant part, in the first paragraph immediately below the title of the case, there shall appear the identity of the responding party. In this case, Propounding Party lists the names of two parties as 'Responding Party,' when the relevant code section uses the singular rather than plural. A propounding party must propound discovery to individual parties individually and separately. ¶ Objection: Request is overbroad as to scope. ¶ Objection: Interrogatory calls for information protected by attorney-client privilege. ¶ Objection: Request is vague, ambiguous, and uncertain as to 'correct address.' " (Motion, pp. 31:24-32:8.)

Plaintiffs maintain that these documents are pertinent to their claims of defamation, fraud, misrepresentation, abuse of process, intentional infliction of emotional distress, illegal lockout, and litigation misconduct, stating: "Defendant affirmatively used these labels in pleadings and communications, placing the factual basis for those statements squarely at issue." (Motion, p. 32:16-18.)

The Court finds that Plaintiffs have demonstrated good cause, as the requested documents would aid in determining whether Dennis P. Block possessed a factual basis for accusing Plaintiffs of being "squatters," "trespassers," or unlawful occupants.

Consequently, as Dennis P. Block's objections have been deemed waived, the Court GRANTS Plaintiffs' request to compel further responses to Request for Production No. 7.

Request for Production No. 8

Plaintiffs request: "Produce all communications between YOU and landlord Rouhi Haghnazarzadeh prior to filing the unlawful detainer." (Motion, p. 34:6-7.)

In response, Dennis P. Block stated: "Objection: Violation of CCP § 2031.030(b). Per CCP § 2031.030(b), in relevant part, in the first paragraph immediately below the title of the case, there shall appear the identity of the responding party. In this case, Propounding Party lists the names of two parties as 'Responding Party,' when the relevant code section uses the singular rather than plural. A propounding party must propound discovery to individual parties individually and separately. ¶ Objection: Request is overbroad as to scope. ¶ Objection: Interrogatory calls for information protected by attorney-client privilege." (Motion, p. 34:13-22.)

Plaintiffs maintain that these documents are pertinent to their claims of abuse of process, fraud, misrepresentation, defamation, illegal lockout, and litigation misconduct, stating: "These communications may reveal Defendant's awareness of Plaintiffs' tenancy, address, the condemned status of the property, and the basis for allegations made against Plaintiffs." (Motion, p. 37:7-10.) Furthermore, Plaintiffs argue that the requested documents may illustrate "Defendant's knowledge, intent, and role in initiating and prosecuting the unlawful detainer." (Motion, p. 37:6-7.)

The Court finds that Plaintiffs have demonstrated good cause, as the requested documents would aid in determining whether Dennis P. Block was aware of Plaintiffs' tenancy and address, the alleged condemned status of the property, and the grounds for the allegations made against Plaintiffs both prior to and during the prosecution of the unlawful detainer action.

Consequently, as Dennis P. Block's objections have been deemed waived, the Court GRANTS Plaintiffs' request to compel further responses to Request for Production No. 8.

Request for Production No. 9

Plaintiffs request: "Produce all documents shown or provided to YOU by the landlord in support of filing the unlawful detainer." (Motion, p. 36:26-27.)

In response, Dennis P. Block stated: "Objection: Violation of CCP § 2031.030(b). Per CCP § 2031.030(b), in relevant part, in the first paragraph immediately below the title of the case, there shall appear the identity of the responding party. In this case, Propounding Party lists the

names of two parties as 'Responding Party,' when the relevant code section uses the singular rather than plural. A propounding party must propound discovery to individual parties individually and separately. ¶ Objection: Request is overbroad as to scope. ¶ Objection: Interrogatory calls for information protected by attorney-client privilege." (Motion, p. 37:5-15.)

Plaintiffs maintain that these documents are pertinent to their claims of abuse of process, fraud, misrepresentation, defamation, illegal lockout, utility shutoff, and litigation misconduct, stating: "These documents go to Defendant's knowledge, intent, reliance, and the factual basis for allegations made against Plaintiffs." (Motion, p. 39:19-20.)

The Court finds that Plaintiffs have demonstrated good cause, as the requested documents would aid in determining whether Dennis P. Block possessed a factual basis for prosecuting the unlawful detainer action.

Consequently, as Dennis P. Block's objections have been deemed waived, the Court GRANTS Plaintiffs' request to compel further responses to Request for Production No. 9.

Request for Production No. 10

Plaintiffs request: "Produce all documents reflecting any investigation conducted by YOU regarding Plaintiffs' tenancy before filing the unlawful detainer." (Motion, p. 40:4-6.)

In response, Dennis P. Block stated: "Objection: Violation of CCP § 2031.030(b). Per CCP § 2031.030(b), in relevant part, in the first paragraph immediately below the title of the case, there shall appear the identity of the responding party. In this case, Propounding Party lists the names of two parties as 'Responding Party,' when the relevant code section uses the singular rather than plural. A propounding party must propound discovery to individual parties individually and separately. ¶ Objection: Request is overbroad as to scope. ¶ Objection: Interrogatory calls for information protected by attorney-client privilege." (Motion, p. 40:12-23.)

In their further response, Dennis P. Block stated: "After a diligent search and reasonable inquiry in an effort to comply with this request

Responding Party is unable to respond because the requested documents have never existed.” (Motion, p. 41:5-7.)

Plaintiffs maintain that these documents are pertinent to their claims of abuse of process, fraud, misrepresentation, defamation, and litigation misconduct, stating: “If no investigation occurred, that fact is highly material. If documents reflecting investigation exist, they must be produced.” (Motion, p. 43:4-5.)

The Court finds that Plaintiffs have demonstrated good cause, as the requested documents would aid in determining whether Dennis P. Block possessed a factual basis for initiating the unlawful detainer action. However, the Court cannot compel Dennis P. Block to produce documents that do not exist.

As discussed above, Dennis P. Block’s further response satisfies the requirements under Code of Civil Procedure section 2031.230 by asserting that (1) a diligent search and reasonable inquiry have been undertaken and (2) the particular item or category has never existed.

Thus, the Court DENIES Plaintiffs’ request to compel further responses to Request for Production No. 10.

Request
for Monetary Sanctions

Plaintiffs seek an award of \$2,250.00 in monetary sanctions against Defendants for what they assert is “the reasonable value of the time Plaintiffs were forced to expend addressing Defendant’s misuse of the discovery process and preparing this motion.” (Motion, p. 9:20-22.) However, in accordance with the ruling in *Argaman v. Ratman* (1999) 73 Cal.App.4th 1173, 1180, individuals “litigating in propria persona may not be awarded monetary discovery sanctions based on compensation for time and effort expended as a result of a misuse of the discovery process.”

Accordingly, Plaintiffs’ request for monetary sanctions is DENIED.

ORDERS

1) Plaintiffs Jimmy Brown and Angel Brown's

Motion to Compel Further Responses to Requests for Production (Set One) is GRANTED with respect to Request for Production Nos. 3, 7, 8, and 9, and DENIED with respect to Request for Production Nos. 4, 5, and 10.

2)

Defendant Dennis P. Block must provide the code-compliant responses and documents, without objections, on or before August 7, 2026.

3) Plaintiffs's Request for Monetary Sanctions is DENIED.

4) Defendants are ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: July 10, 2026

Judge

Tamara Hall

Judge

of the Superior Court